

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M. Anderson
Temporary Judge Catherine Evans

Date: 05/27/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	De Leon – Trust; 30-2022-01266610	MOTION TO DISMISS
2	Garcia – Trust; 30-2025-01471869	DEMURRER Respondent Ulisses Gonzalez’ Demurrer (ROA 30) is OVERRULED. Respondent Ulisses Gonzalez (Respondent) demurs to all causes of action in the petition filed by Jennifer Macy and Elaine G. Rodriguez (collectively Petitioners) on the ground each claim fails to state sufficient facts because the petition does not provide details regarding the alleged individual misconduct by Respondent but, rather, generally alleges misconduct by “RESPONDENTS”—a term defined in the petition as meaning Ulisses and his mother Martha Garcia, who is also a respondent. (Petition at 2:19-25.) The petition includes the following allegations of wrongdoing against the respondents: (1) “[T]he purported TRUST was executed as a direct result of undue influence exerted by RESPONDENTS over DECEDENT.” (ROA 2 at 4:19-21.) (2) “[T]he purported TRUST was to RESPONDENTS’ own benefit and to the detriment of DECEDENT’s children.” (ROA 2 at 4:21-23.) (3) “RESPONDENTS occupied the positions of supportive wife and step-son, respectively, to DECEDENT during his declining physical and mental health. DECEDENT reposed trust and confident in RESPONDENTS during a time of vulnerability, which RESPONDENTS used to influence DECEDENT to execute the TRUST in their favor.” (ROA 2 at 5:18-22.)’ (4) “RESPONDENTS actively procured the purported TRUST as part of a pattern of conduct aimed at gaining control of DECEDENT’s major assets, including real property, personal property,

	financial accounts, and more.” (ROA 2 at 5:26-6:1.) (5) “Despite having actual knowledge in and before 2024 of DECEDENT’s lack of decisional and testamentary capacity . . . RESPONDENTS facilitated the purported TRUST in their favor by convincing, coercing, and/or forcing DECEDENT to sign documents without reading or understanding them, including not only the TRUST but also his will, powers of attorney, and possibly more.” (ROA 2 at 6:2-6.) (6) “RESPONDENTS facilitated the execution of durable powers of attorney for finance and for health care, named MARTHA and/or ULISSES as agents and inserting themselves into decision-making positions regarding DECEDENT’s finances and his health care, thereby rendering DECEDENT dependent upon them for her [sic] day-to-day living.” (ROA 2 at 7:17-20.) (7) “RESPONDENTS utilized their control over DECEDENT’s finances and person to transfer funds from DECEDENT’s accounts to themselves for their own personal benefit and to the detriment of DECEDENT, PETITIONERS, and other heirs.” (ROA 2 at 7:27-8:1.) (8) “RESPONDENTS willfully and intentionally converted the property, sale proceeds, and income to their own personal use to the exclusion of DECEDENT and, following DECEDENT’s death, PETITIONERS.” (ROA 2 at 10:9-12.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) As explained by the California Supreme Court: “The complaint in a civil action serves a variety of purposes [citation], of which two are relevant here: it serves to frame and limit the issues [citation] and to apprise the defendant of the basis upon which the plaintiff is seeking recovery [citations]. In fulfilling this function, the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts.” (<i>Committee On Children’s Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 211–212.) ““[A] plaintiff is required only to set forth the essential facts of his case with reasonable precisions and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.”” (<i>Foster v. Sexton</i> (2021) 61 Cal.App.5th 998, 1019–1020.) ““[L]ess specificity is required in pleading matters of which the defendant has
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		superior knowledge.” (<i>Thomas v. Regents of the University of California</i> (2023) 97 Cal.App.5th 587, 611.) “A complaint will be upheld “so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.”” (<i>Ibid.</i>) The petition is sufficient to enable Respondent to prepare a defense, particularly because any doubt about what Uliisses is alleged to have done individually can be clarified through discovery. The demurrer is OVERRULED. Petitioners are directed to give notice.
3	Fung – Trust; 30-2026-01548357	MOTION TO EXPUNGE LIS PENDENS Respondent Michelle Fung’s Motion to Expunge Lis Pendens (ROA 51) is CONTINUED for supplemental briefing and further hearing as set forth below. Pursuant to CCP §§ 405.22, 405.23, 405.30, 405.31, 405.34, and 405.38, Respondent Michell Fung (Respondent) seeks an order expunging a lis pendens placed on property commonly known as 2602 W. Castor Street, Santa Ana, CA 92704 (Property) on the grounds Petitioners: (1) do not assert a real property claim against the Property and (2) cannot establish the probable validity of their claim. A lis pendens must be expunged if: (1) the pleading on which the lis <i>pendens</i> is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of the real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) The party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 647; Code of Civ. Proc., § 405.30.) <u>Real property claim.</u> A “real property claim” is one which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement identified in the pleading. (Code of Civ. Proc., § 405.4.) The allegations of the petition determine whether a “real property claim” is involved; no independent evidence is required. (<i>Urez Corp. v. Superior Court</i> (1987) 190 Cal.App.3d 1141, 1149.)

		Because the petition seeks, in part, to remove the trustee (ROA 2 at 3:25-4:20) and the trustee holds title to a trust's real property, the petition asserts a real property claim. "The trustee of a trust holds title to real property. Unlike a corporation, a trust is not a legal entity. Rather, a trust is a fiduciary <i>relationship</i> with respect to property. When property is held in trust, there is always a divided ownership of property, generally with the trustee holding legal title and the beneficiary holding equitable title. Trusts do not own property; trustees do." (<i>Newell v. Superior Court</i> (2024) 107 Cal.App.5th 728, 736–737.) If Petitioners are successful on their claim, a new trustee would be designated and that new trustee would then hold title to the Property in his or her name as successor trustee. (<i>Id.</i> at p. 737.) <u>Probable validity of the claim.</u> To overcome the motion to expunge, Petitioners must establish "it is more likely than not [she] will obtain a judgment" on her real property claim. (Code of Civ. Proc., § 405.3.) Petitioner's showing must be by a preponderance of the evidence. (Code of Civ. Proc., § 405.32.) The briefs filed by both parties focus almost entirely on the issue of whether there was a real property claim. Neither party presents evidence or argument regarding the probable validity of Petitioners' claims. Accordingly, the court requests supplemental briefing on that issue. Petitioners may file and serve supplemental briefing on the issue of probable validity no later than June 10, 2026. Respondent may file and serve responsive supplemental briefing on the issue probable validity no later than June 24, 2026. Neither party's briefing may exceed seven pages, not including declarations and exhibits. The hearing on the motion to expunge is CONTINUED to July 1, 2026 at 9:00 AM in Department CM08. The court directs the clerk to give notice.
4	Nguyen – Elder Abuse; 30-2025-01501681	MOTION FOR JUDGMENT
5	Thompson – Probate; 30-2024-01405460	MOTION FOR COURT ORDER TO ACCESS DECEDENT'S DIGITAL ASSETS AND DEVICE

6	Anderson – Conservatorship; 30-2024-01440736	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (ROA 151) Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2030.300 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Special Interrogatories 1-63. The motion is unopposed despite proof of service. The evidence before the court is that special interrogatories were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful. The "General Objections" are procedurally improper. (Code Civ. Proc. §§ 2030.210(a)(3) and 2030.240(b).) Moreover, Respondent waived all objections by not timely responding to the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2030.290(a).) Respondent's responses to special interrogatories 1-21, 24, 26-30, 32-35, 38, 39, 41, 42, 44, 45, 47, 48, 50, 51, 53, and 54 do not comply with Code of Civil Procedure section 2030.220. Respondent's objections to special interrogatories 22, 31, and 37 are without merit. Respondent is making a contention as to the reason he is "concerned." Moreover, Respondent waived objections. As to special interrogatories. 23, 40, 49, and 52: The court finds the substantive answers are sufficient, though they must be verified. (Code Civ. Proc. § 2030.250.) Moreover, if any information was withheld based on the General Objections, the answers must be modified. As to special interrogatories 25, 43, and 46: The substantive responses are insufficient. Petitioner must state how, when, where, and by whom he was "informed." Further, Respondent must state the factual basis for his understandings, concerns, and beliefs. As to special interrogatory 36: An initial response must be provided.
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As to special interrogatories **55 and 58**: The substantive responses are insufficient. Respondent states some but not all facts that support his contention as evidenced by the phrase, "In addition to information that he has learned from others and from his own observations." Respondent must state all facts regarding the information he has learned and observed.

As to special interrogatories **56, 57, 59, and 60**: The substantive responses are sufficient. However, they must be verified and may need to be modified in light of the further responses required for special interrogatory nos. 55 and 58.

As to special interrogatory **61**: The objection on the ground of privacy is without merit. Bankruptcy filings are public record. Special interrogatories **62 and 63** must be answered.

Respondent **shall** serve further responses to special interrogatories 1-63, under oath and without objection, within 20 days of notice of this ruling, extended for method of service.

Pursuant to Code of Civil Procedure sections 2023.010 and 2030.290(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of **\$1,750** on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.

**MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA
143)**

Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2031.300 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Requests for Production of Documents, set one.

The motion is unopposed despite proof of service.

The evidence before the court is that requests for production of documents were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful.

The "General Objections" are procedurally improper. (Code Civ. Proc. §§ 2031.210(a) and 2031.240(b).) Moreover, Respondent waived all objections by not timely responding to

the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2031.300.)

As to requests **1-27 and 33**: Respondent's responses do not comply with Code of Civil Procedure sections 2031.220.

As to requests **28-32**: The motion to compel further response is **denied**. Though Respondent waived his objections, the moving party on a motion to compel further responses to requests for production of documents has the burden of setting forth specific facts showing good cause justifying the discovery. (Code Civ. Proc. § 2031.310(b)(1).) Petitioner has not met this burden. Respondent's financial status might make obtaining a bond more difficult, but not necessarily impossible. Moreover, there are less intrusive means of discovering whether and to what extent Respondent's financial status will impede his ability to obtain a bond.

Respondent **shall** serve further responses to request for production of documents 1-27 and 33, under oath and without objection, within 20 days of notice of this ruling, extended for method of service.

Pursuant to Code of Civil Procedure sections 2023.010 and 2031.300(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of **\$1,750** on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.

**MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR ADMISSION (ROA 139)**

Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2033.290 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Requests for Admission, set one.

The motion is unopposed despite proof of service.

The evidence before the court is that request for admission were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful.

The "General Objections" are procedurally improper. (Code Civ. Proc. §§ 2033.210(a) and 2033.230(b).) Moreover, Respondent waived all objections by not timely responding to the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2033.280(a).)

As to requests **11, 17, 26, 44, and 45**: The objections are without merit. Moreover, Respondent waived objections.

As to requests **12, 16, 29, 32, 37 and 40**: The substantive responses are sufficient, though the motion to compel must still be granted as the responses are unverified. (Code Civ. Proc. § 2033.240.) Respondent answered each of these requests with an admission or denial. Petitioner's contention that these answers are "untruthful" is not a reason to compel a further response. Untruthful responses may be used to impeach Respondent, and/or Petitioner may seek cost of proof sanctions pursuant to Code of Civil Procedure section 2033.420.

As to requests **18, 19, 20, 21, 22, 23, 24, 25, 27, 35, 36, 39, 41, and 43**: The substantive responses do not comply with Code of Civil Procedure section 2033.220(c).

Respondent **shall** serve further responses to all request for admission, under oath and without objection, within 20 days of notice of this ruling, extended for method of service.

Pursuant to Code of Civil Procedure sections 2023.010 and 2033.290(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of **\$1,750** on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.

MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (ROA 147)

Petitioner Mark A. Anderson ("Petitioner") moves pursuant to Code of Civil Procedure section 2030.300 to compel Respondent Eric R. Anderson ("Respondent") to further respond to Form Interrogatories set one.

The motion is unopposed despite proof of service.

The evidence before the court is that form interrogatories were served on 5/27/25. Counsel for Petitioner offered an extension of time to respond by 7/10/25 but with objections waived. Responses were served on 7/7/25 and contained a

		mix of objections and substantive responses. The Responses were unverified. The parties agreed to extend Petitioner's time to bring this motion to 10/10/25. Efforts to meet and confer were unsuccessful. As to form interrogatories 2.1(b) and (c), 2.2, 2.5, 2.6, and 2.7: Respondent's objections are without merit. Moreover, Respondent waived all objections by not timely responding to the discovery and accepting the conditional extension of time. (Code Civ. Proc. § 2030.290(a).) As to form interrogatory 17.1: Respondent's alleged response as set forth in Petitioner's separate statement (ROA 131, 10:17-20) does not match the response provided in Respondent's responses to form interrogatories attached as Exhibit 4 to the Declaration of Anthony Marcus (ROA 147, Marcus Decl., Ex. 4, 5:14-15:1). Thus, the court makes no finding as to the substance of said response. The response must still be verified. Respondent shall serve further responses to all form interrogatories, under oath and without objection, within 20 days of notice of this ruling, extended for method of service. Pursuant to Code of Civil Procedure sections 2023.010 and 2030.290(c) and California Rules of Court, Rule 3.1348, the court imposes reasonable sanctions of \$1,750 on Respondent payable to Anthony Marcus Law Firm within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.
7	Martinez Cano - Guardianship; 30-2025-01509000	MOTION TO CONTINUE HEARING <i>Notice of Withdrawal filed 05/14/2026</i>
8	Justin – Trust; 30-2023-01357386	MOTION COMPEL ANSWERS TO INTERROGATORIES Respondent James Hicklin's Motion to Compel Further Responses to First Set of Special Interrogatories and Request for Sanctions (ROA 449) is DENIED as moot regarding the request for further responses. On the issue of sanctions, Respondent should be prepared to explain more fully the relevance of the subject interrogatories, which inquire into the relationship, if any, between petitioner and his counsel prior to the retention of counsel for this proceeding. In the motion, Respondent

		asserts the details of any relationship or friendship between petitioner and his counsel before counsel was retained “are probative of potential collusion or undue influence affecting Ms. Justin’s estate and the administration and litigation of the Trust, and they may bear on bias, credibility, and ethical issues.” (Motion at 8:18-20.) The court would appreciate a fuller explanation of this statement. Petitioner, on the other hand, should be prepared to address whether her efforts in the meet and confer process satisfied the statutory requirements.
9	Bent – Probate; 30-2024-01429924	MOTION COMPEL ANSWERS TO INTERROGATORIES (2) Petitioner James Sullivan’s Motion to Compel James C. Bent to Answer Form Interrogatories, etc. (ROA 123) is DENIED. Petitioner James Sullivan’s Motion to Compel James C. Bent to Answer Special Interrogatories, etc. (ROA 124) is DENIED. Petitioner sought to compel James C. Bent (Bent) to respond to special and form interrogatories. Responses were served on 5-12-26—after the motion was filed but before the hearing. (ROA 53.) Accordingly, the requests to compel responses are denied as moot. The court also denies the request for sanctions. The proofs of service attached to the subject discovery show service to Bent only at 13250 Cholla Road, Whitewater, California 92282. However, Bent does not reside at that address. Prior to service of the discovery, Bent filed and served one document in this proceeding, a “Motion for Continuance of Appointment of James T. Sullivan as Administrator.” (ROA 98.) That document showed only an email address; no physical address was included. Because the discovery was not properly served on Bent, the request for sanctions is DENIED. In his opposition, Bent notifies the court and the parties that—for any future filing—he can be served at P.O. Box 273, Rancho Mirage, California 92270. The court directs the clerk to give notice of this ruling.